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**Conference of the Parties serving as the meeting  
of the Parties to the Paris Agreement****Report of the Conference of the Parties serving as the  
meeting of the Parties to the Paris Agreement on its  
fifth session, held in the United Arab Emirates from  
30 November to 13 December 2023****Addendum****Part two: Action taken by the Conference of the Parties serving as the  
meeting of the Parties to the Paris Agreement at its fifth session****Contents****Decisions adopted by the Conference of the Parties serving as  
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## Decision 6/CMA.5

### **Santiago network for averting, minimizing and addressing loss and damage associated with the adverse effects of climate change under the Warsaw International Mechanism for Loss and Damage associated with Climate Change Impacts**

*The Conference of the Parties serving as the meeting of the Parties to the Paris Agreement,<sup>1</sup>*

*Recalling* the Paris Agreement and relevant decisions of the Conference of the Parties and the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement, in particular decisions 3/CP.18, 2/CP.19, 2/CP.20, 1/CP.21, 2/CP.21, 3/CP.22, 4/CP.22, 5/CP.23, 10/CP.24, 2/CP.25, 1/CP.26, 17/CP.26, 1/CP.27, 11/CP.27, 2/CMA.2, 1/CMA.3, 19/CMA.3, 1/CMA.4 and 12/CMA.4,

*Also recalling* Article 8 of the Paris Agreement,

1. *Recalls* that the Santiago network for averting, minimizing and addressing loss and damage associated with the adverse effects of climate change was established to catalyse the technical assistance of relevant organizations, bodies, networks and experts for the implementation of relevant approaches to averting, minimizing and addressing loss and damage associated with the adverse effects of climate change at the local, national and regional level in developing countries that are particularly vulnerable to the adverse effects of climate change;<sup>2</sup>
2. *Also recalls* the request for the UNFCCC secretariat, under the guidance of the Chairs of the subsidiary bodies, to develop a draft host agreement (memorandum of understanding) with the host of the Santiago network secretariat recommended by the subsidiary bodies at their fifty-eighth sessions with a view to it being recommended for consideration and adoption by the governing body or bodies<sup>3</sup> at the session(s) to be held in November–December 2023;<sup>4</sup>
3. *Expresses appreciation* to Canada, Japan, Spain, Switzerland and the United States of America for their financial contributions to the work of the Santiago network;
4. *Recalls* decision 12/CMA.4, endorsed by decision 11/CP.27, which establishes the institutional arrangements of the Santiago network to enable its full operationalization, including to support its mandated role in catalysing technical assistance for the implementation of the relevant approaches at the local, national and regional level in developing countries that are particularly vulnerable to the adverse effects of climate change;<sup>5</sup>
5. *Also recalls* paragraph 16 of decision 12/CMA.4, which states that the Santiago network secretariat will be accountable to and operate under the guidance of the governing body or bodies through the Advisory Board of the Santiago network and hosted by an organization or a consortium of organizations able to provide the necessary administrative and infrastructural support for its effective functioning;

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<sup>1</sup> Nothing in this document prejudices Parties' views or prejudices outcomes on matters related to the governance of the Warsaw International Mechanism for Loss and Damage associated with Climate Change Impacts.

<sup>2</sup> Decision 2/CMA.2, para. 43.

<sup>3</sup> As footnote 1 above.

<sup>4</sup> Decision 12/CMA.4, para. 24

<sup>5</sup> In accordance with the process outlined in paras. 19–23 of decision 12/CMA.4, endorsed by decision 11/CP.27.

6. *Welcomes* the report on the hosting of the secretariat of the Santiago network,<sup>6</sup> prepared by the evaluation panel;<sup>7</sup>
7. *Notes* that two proposals were received in response to the call for proposals to host the Santiago network secretariat,<sup>8</sup> the executive summaries of which are available on the UNFCCC website;<sup>9</sup>
8. *Welcomes* the efforts of the proponents in responding to the call for proposals to host the Santiago network secretariat, of the evaluation panel in assessing the proposals and preparing the report referred to in paragraph 6 above and of the UNFCCC secretariat in providing support for the host selection process, all within a limited time frame;
9. *Notes with appreciation* the completion of the selection process for the host of the secretariat of the Santiago network, which was supported by an evaluation panel comprising four members of the Executive Committee of the Warsaw International Mechanism for Loss and Damage associated with Climate Change Impacts, two members of the Advisory Board of the Climate Technology Centre and Network and two members of the Paris Committee on Capacity-building and involved the participation of the two proponents that responded to the call for proposals for hosting the Santiago network secretariat;
10. *Expresses appreciation* to both proponents that submitted proposals for hosting the Santiago network secretariat;
11. *Selects* the joint proposal submitted by the consortium of the United Nations Office for Disaster Risk Reduction and the United Nations Office for Project Services for the hosting of the Santiago network secretariat for an initial term of five years, with five-year renewal periods;<sup>10</sup>
12. *Encourages* the consortium, as host of the Santiago network secretariat, to consider exploring areas for collaboration with the Caribbean Development Bank, which also submitted a proposal for hosting, where appropriate;
13. *Authorizes* the Executive Secretary to sign, on behalf of the governing body or bodies, the agreement between the governing body or bodies and the consortium regarding the hosting of the Santiago network secretariat;
14. *Requests* the consortium, as host of the Santiago network secretariat, to ensure that the necessary arrangements are in place for the meetings of the Advisory Board of the Santiago network, including privileges and immunities for members of the Board in line with existing practice;
15. *Also requests* the consortium, as host of the Santiago network secretariat, to undertake, by the end of January 2024, an analysis of the cost-effectiveness, including a cost-benefit analysis, of various locations around the world as options for the location of the head office of the Santiago network secretariat from a pool of potential locations that can provide the privileges and immunities referred to in paragraph 14 above, and to provide to the Advisory Board of the Santiago network the results of the analysis with its recommendation on which location would be the most cost-effective and suitable in the light of the roles and responsibilities and the organizational structure of the Santiago network secretariat as detailed in annex I to decision 12/CMA.4 for consideration and a decision thereon by the Advisory Board at its 1<sup>st</sup> meeting, to be held in 2024;
16. *Encourages* the consortium, as host of the Santiago network secretariat, to make the necessary arrangements to promptly launch work under the Santiago network upon conclusion of the November–December 2023 session(s) of the governing body or bodies, including the appointment of a director of the secretariat through a merit-based, open and

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<sup>6</sup> FCCC/SB/2023/1.

<sup>7</sup> Details on the evaluation panel and the process for selecting the host are available at <https://unfccc.int/SNevalpanel>.

<sup>8</sup> The call was issued on 31 December 2022 and is available at <https://unfccc.int/documents/624794>.

<sup>9</sup> <https://unfccc.int/proposalsSNhost>.

<sup>10</sup> Pursuant to decision 12/CMA.4, annex I, para. 21.

transparent process, who will facilitate the timely recruitment of the staff of the secretariat in line with the terms of reference of the Santiago network;<sup>11</sup>

17. *Requests* the Santiago network secretariat to facilitate the 1<sup>st</sup> meeting of the Advisory Board of the Santiago network, to take place in 2024;

18. *Also requests* the Santiago network secretariat to start managing, as soon as possible, the day-to-day operations of the secretariat, in line with its role and responsibilities;

19. *Adopts* the memorandum of understanding between the Conference of the Parties and the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement on the one hand and the United Nations Office for Disaster Risk Reduction and the United Nations Office for Project Services on the other regarding the hosting of the Santiago network secretariat, as contained in the annex;

20. *Reaffirms* that technical assistance provided under the Santiago network in a demand-driven manner will be developed through an inclusive, country-driven process, taking into account the needs of vulnerable people, Indigenous Peoples and local communities;

21. *Also reaffirms* that, when technical assistance is provided under the Santiago network, it should take into consideration the cross-cutting issues referred to in the eleventh preambular paragraph of the Paris Agreement;

22. *Reiterates* the request<sup>12</sup> to the UNFCCC secretariat to continue providing support for developing countries that are particularly vulnerable to the adverse effects of climate change that may seek or wish to benefit from the technical assistance available from organizations, bodies, networks and experts under the Santiago network, until the Santiago network secretariat is operational;

23. *Requests* the UNFCCC secretariat to develop draft guidelines on preventing potential and addressing actual and perceived conflicts of interest in relation to the Santiago network, including any conflicts of interest that may arise when organizations, bodies, networks and experts are engaged in providing technical support to the Santiago network secretariat while responding to technical assistance requests, or when the host of the Santiago network secretariat is responding as an organization, body, network or expert to technical assistance requests, for review and approval by the Advisory Board of the Santiago network at its 1<sup>st</sup> meeting;

24. *Also requests* the Santiago network secretariat to:

(a) Adhere to the mandate of the Santiago network and its functions, including facilitating the consideration of a wide range of topics relevant to averting, minimizing and addressing loss and damage, including but not limited to current and future impacts, priorities and actions related to averting, minimizing and addressing loss and damage pursuant to decisions 3/CP.18 and 2/CP.19; the areas referred to in Article 8, paragraph 4, of the Paris Agreement; and the strategic workstreams of the five-year rolling workplan of the Executive Committee of the Warsaw International Mechanism;

(b) Assume its roles and responsibilities, including that it shall be accountable to and operate under the guidance of the Advisory Board of the Santiago network, recognizing the different mandates of the host and the Santiago network, and that the Advisory Board will provide guidance and oversight to the Santiago network secretariat on the effective implementation of the functions of the network;

(c) Report annually to the Advisory Board of the Santiago network information on the in-kind and other support provided by its host that has contributed to its ability to assume its roles and responsibilities, as set out in the terms of reference of the Santiago network;<sup>13</sup>

(d) Make use of regional and subregional United Nations offices in all United Nations geographical regions, as appropriate, to serve as designated units to provide relevant

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<sup>11</sup> Decision 12/CMA.4, annex I, para. 15.

<sup>12</sup> Decision 12/CMA.4, para. 15.

<sup>13</sup> Decision 12/CMA.4, annex I, para. 19.

services and support for catalysing effective and timely technical assistance in developing countries particularly vulnerable to the adverse effects of climate change;

(e) Include in its annual report to the Advisory Board of the Santiago network information on the inclusive, balanced and equitable nature of the technical assistance catalysed across all regions with developing countries particularly vulnerable to the adverse effects of climate change and take action, as appropriate;

(f) Have a lean, cost-efficient organizational structure;<sup>14</sup>

(g) Make provisions for discussion on further arrangements for the implementation of the host agreement (memorandum of understanding) in line with future decisions of the governing body or bodies;

(h) Carry out financial management, auditing and reporting functions and implement a robust accountability system, sound financial systems of international standard, and a fiduciary record that ensures the correct, impartial administering and disbursement of funds;

25. *Further requests* the Advisory Board of the Santiago network to develop its draft rules of procedure with a view to recommending them, through the subsidiary bodies at their sixty-first sessions (November 2024), for consideration and adoption by the governing body or bodies at the session(s) to be held in November 2024;

26. *Invites* the Advisory Board of the Santiago network to consider and take appropriate action to catalyse technical assistance of relevant organizations, bodies, networks and experts at the local, national and regional level in developing countries particularly vulnerable to the adverse effects of climate change, including through the provision of guidance for the development by the Santiago network secretariat of guidelines and procedures<sup>15</sup> for ensuring the demand-driven nature of all requests for technical assistance submitted under the Santiago network, and to safeguard against conflicts of interest in, or, as appropriate, the overconcentration of, the provision and delivery of technical assistance through or by specific organizations, bodies, networks and experts;

27. *Also invites* the Advisory Board of the Santiago network to provide guidance to the Santiago network secretariat on developing guidelines and procedures for enabling access to and assisting in preparing requests for technical assistance that recognize the significant capacity constraints of the least developed countries and small island developing States;

28. *Requests* the host of the Santiago network secretariat to ensure that the Santiago network and its secretariat are able to receive the required financial and other support from a wide variety of sources through all parts of the consortium to implement the terms of reference of the Santiago network;

29. *Recalls* paragraph 67 of decision 1/CMA.3, in which it was decided that the Santiago network will be provided with funds to support technical assistance for the implementation of relevant approaches to avert, minimize and address loss and damage associated with the adverse effects of climate change in developing countries in support of the functions set out in paragraph 9 of decision 19/CMA.3;

30. *Also recalls* paragraph 70 of decision 1/CMA.3, which urged developed country Parties to provide funds for the operation of the Santiago network and for the provision of technical assistance as set out in paragraph 67 of the same decision;

31. *Further recalls* paragraph 6 of decision 12/CMA.4, endorsed by decision 11/CP.27, which encouraged others to provide support for the operation of the Santiago network and for the provision of technical assistance under the network;

32. *Welcomes* the pledges made to the Santiago network as at 6 December 2023 by the European Union and its member States Denmark, Germany, Ireland and Luxembourg, and

<sup>14</sup> In accordance with decision 12/CMA.4, annex I, para. 13.

<sup>15</sup> In accordance with para. 17(b) of decision 12/CMA.4, endorsed by decision 11/CP.27.

by Switzerland and the United Kingdom of Great Britain and Northern Ireland, amounting to approximately USD 40.7 million;<sup>16</sup>

33. *Recalls* paragraph 69 of decision 1/CMA.3, which states that the Santiago network secretariat will administer the funds referred to in paragraph 67 of the same decision;

34. *Welcomes* decisions 1/CP.28 and 5/CMA.5 on the operationalization of the new funding arrangements, including a fund, for assisting developing countries particularly vulnerable to the adverse effects of climate change in responding to loss and damage referred to in paragraphs 2–3 of decisions 2/CP.27 and 2/CMA.4, taking note of the parts of those decisions that relate to the Santiago network;

35. *Requests* the Advisory Board of the Santiago network to designate up to two representatives to take part in the annual high-level dialogue on coordination and complementarity with representatives of the main entities forming part of the new funding arrangements, referred to in paragraph 2 of decisions 2/CP.27 and 2/CMA.4, pursuant to paragraphs 11–16 of annex II to decisions 1/CP.28 and 5/CMA.5;

36. *Invites* the Santiago network secretariat to coordinate with the secretariat of the fund referred to in paragraph 3 of decisions 2/CP.27 and 2/CMA.4 in supporting developing countries particularly vulnerable to the adverse effects of climate change in seeking to access the fund through technical assistance and to contribute to coherence and complementarity with the fund by aligning the technical assistance it catalyses under the Santiago network to build capacity and support programmatic approaches of the funding arrangements, including a fund, referred to in paragraphs 2–3 of decisions 2/CP.27 and 2/CMA.4, as appropriate;

37. *Decides* that, once the outstanding nominations for the Advisory Board of the Santiago network<sup>17</sup> have been received by the UNFCCC secretariat, the nominees will be deemed elected at this session or these sessions of the governing body or bodies, in accordance with established practice;

38. *Notes* that considerations related to the governance of the Warsaw International Mechanism will continue at its sixth session (November 2024);<sup>18</sup>

39. *Takes note* of the estimated budgetary implications of the activities to be undertaken by the UNFCCC secretariat referred to in paragraphs 22–23 above;

40. *Requests* that the actions of the UNFCCC secretariat called for in this decision be undertaken subject to the availability of financial resources.

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<sup>16</sup> Noting that this does not set a precedent for making pledges to the Santiago network.

<sup>17</sup> In accordance with decision 12/CMA.4, paras. 10–13.

<sup>18</sup> It is noted that discussions on the governance of the Warsaw International Mechanism did not produce an outcome; this is without prejudice to further consideration of this matter.

## Annex

### **Memorandum of understanding between the Conference of the Parties to the United Nations Framework Convention on Climate Change and the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement, on the one hand, and the United Nations Office for Disaster Risk Reduction and the United Nations Office for Project Services, on the other, regarding the hosting of the Santiago network secretariat**

This memorandum of understanding (MOU) is concluded between the Conference of the Parties to the United Nations Framework Convention on Climate Change (COP) and the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement (CMA) (hereinafter referred to as the “governing body or bodies”<sup>1</sup>) on the one hand and the United Nations Office for Disaster Risk Reduction (UNDRR) and the United Nations Office for Project Services (UNOPS) on the other (hereinafter each referred to as “the Party” and collectively referred to as “the Parties”), regarding the hosting of the secretariat of the Santiago network for averting, minimizing and addressing loss and damage associated with the adverse effects of climate change.

*Whereas*, the CMA, by decision 2/CMA.2, noted by the COP in decision 2/CP.25, established, as part of the Warsaw International Mechanism for Loss and Damage associated with Climate Change Impacts, the Santiago network for averting, minimizing and addressing loss and damage associated with the adverse effects of climate change,

*Whereas*, the mission of the Santiago network is to catalyse the technical assistance of relevant organizations, bodies, networks and experts for the implementation of relevant approaches for averting, minimizing and addressing loss and damage associated with the adverse effects of climate change at the local, national and regional level in developing countries that are particularly vulnerable to the adverse effects of climate change,

*Whereas*, the CMA, by decision 19/CMA.3, endorsed by the COP in decision 17/CP.26, decided the functions of the Santiago network,<sup>2</sup> which include facilitating the consideration of a wide range of topics relevant to averting, minimizing and addressing loss and damage approaches, including but not limited to current and future impacts, priorities and actions related to averting, minimizing and addressing loss and damage, pursuant to decisions 3/CP.18 and 2/CP.19, the areas referred to in Article 8, paragraph 4, of the Paris Agreement and the strategic workstreams of the five-year rolling workplan of the Executive Committee of the Warsaw International Mechanism (hereinafter referred to as the “Executive Committee”),

*Whereas*, the CMA, by decision 12/CMA.4, endorsed by the COP in decision 11/CP.27, adopted the terms of reference of the Santiago network<sup>3</sup> (hereinafter referred to as the “terms of reference”) and decided that as part of its structure the Santiago network will have a hosted secretariat, to be known as the Santiago network secretariat, an Advisory Board and a network of member organizations, bodies, networks and experts,<sup>4</sup>

*Whereas*, UNDRR and UNOPS submitted a joint proposal dated 31 March 2023 (hereinafter referred to as the “Proposal”) regarding the hosting of the Santiago network secretariat,

<sup>1</sup> Nothing in this MOU prejudices the views of the Parties to the Convention or the views of the Parties to the Paris Agreement or prejudices outcomes on matters related to the governance of the Warsaw International Mechanism for Loss and Damage associated with Climate Change Impacts. This is without prejudice to further consideration of this matter.

<sup>2</sup> Decision 19/CMA.3, para. 9, with the decision endorsed by the COP in decision 17/CP.26.

<sup>3</sup> Decision 12/CMA.4, annex I.

<sup>4</sup> Decision 12/CMA.4, paras. 3 and 8, with the decision endorsed by the COP in decision 11/CP.27.

**Whereas**, UNDRR aims to substantially reduce the risk and losses in lives, livelihoods and health and in the economic, physical, social, cultural and environmental assets of persons, businesses, communities and countries as part of its mandate to support the implementation, follow-up and review of the Sendai Framework for Disaster Risk Reduction 2015–2030,

**Whereas**, UNOPS is an operational arm of the United Nations established by United Nations General Assembly decision 48/501 of 19 September 1994 and acts as a central resource for the United Nations system in procurement, contracts management and other capacity development activities, as well as providing efficient, cost-effective services to partners in its specialized areas,

**Whereas**, the CMA, by decision 6/CMA.5, endorsed by decision 2/CP.28, selected the Proposal for the hosting of the Santiago network secretariat,

**Whereas**, UNOPS confirms that it has the necessary authorization to enter into this MOU,

**Whereas**, the United Nations General Assembly, by decision 78/546,<sup>5</sup> authorized UNDRR to enter into this MOU,

**Whereas**, the UNFCCC Executive Secretary is authorized by the governing body or bodies to sign this MOU on behalf of the governing body or bodies,

**NOW THEREFORE** the Parties to this MOU have agreed to the following:

## **I. Purpose**

1. The purpose of this MOU is to stipulate the terms of the relationship between the governing body or bodies and UNDRR and UNOPS with respect to the hosting of the Santiago network secretariat in accordance with decision 6/CMA.5, endorsed by the COP in decision 2/CP.28.

## **II. Role and responsibilities of the governing body or bodies<sup>6</sup>**

2. The Santiago network secretariat shall be accountable to and operate under the guidance of the governing body or bodies through the Advisory Board of the Santiago network (hereinafter referred to as the “Advisory Board”).

3. The governing body or bodies shall consider the joint annual report of the Santiago network and the Executive Committee, submitted through the subsidiary bodies in accordance with paragraph 19 of annex I to decision 12/CMA.4, endorsed by decision 11/CP.27, and other future decisions of the governing body or bodies, and provide guidance thereon.

4. In taking decisions that would affect the hosting of the Santiago network secretariat, the governing body or bodies shall take into consideration any views and information provided by UNDRR and UNOPS as host of the Santiago network secretariat.

## **III. Role and responsibilities of the Advisory Board of the Santiago network**

5. The members of the Advisory Board shall be elected in accordance with decision 12/CMA.4, endorsed by decision 11/CP.27.

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<sup>5</sup> Decision entitled “Authorization for the United Nations Office for Disaster Risk Reduction regarding the hosting of the secretariat of the Santiago network for averting, minimizing and addressing loss and damage associated with the adverse effects of climate change”.

<sup>6</sup> Nothing in this MOU prejudices the views of the Parties to the Convention or the views of the Parties to the Paris Agreement or prejudices outcomes on matters related to the governance of the Warsaw International Mechanism for Loss and Damage associated with Climate Change Impacts. This is without prejudice to further consideration of this matter.



6. The Advisory Board shall provide guidance and oversight to the Santiago network secretariat on the effective implementation of the functions of the Santiago network in accordance with its terms of reference.

#### **IV. Role and responsibilities of the United Nations Office for Disaster Risk Reduction and the United Nations Office for Project Services**

7. UNDRR and UNOPS will host the Santiago network secretariat as a dedicated secretariat in accordance with the provisions of this MOU and the terms of reference, as well as with their respective legal and regulatory frameworks, including regulations, rules and procedures. Cooperation between UNDRR and UNOPS will be addressed in a separate agreement between the two organizations.

8. UNDRR and UNOPS shall make regional and subregional UNDRR offices in all United Nations geographical regions available, as appropriate, to serve as designated units for providing relevant services and support for catalysing effective and timely technical assistance in developing countries that are particularly vulnerable to the adverse effects of climate change.

9. UNOPS, in consultation with UNDRR, shall design a lean, cost-effective organizational structure and provide the necessary administrative and infrastructural support for the effective functioning of the Santiago network secretariat, in accordance with relevant UNOPS regulations, rules and procedures, and subject to the financing provided pursuant to chapter VII below.

10. UNOPS shall appoint, in consultation with UNDRR, subject to the endorsement of the Advisory Board<sup>7</sup> and pursuant to the Staff Regulations and Rules of the United Nations,<sup>8</sup> the Director of the Santiago network secretariat through a merit-based, open and transparent process.

11. UNOPS shall appoint, in consultation with UNDRR and in accordance with technical guidance from UNDRR, pursuant to the Staff Regulations and Rules of the United Nations, consistently with paragraph 33 below, a small core team of professional and administrative staff, managed by the Director, to support the Santiago network secretariat in meeting its responsibilities and performing its functions efficiently and effectively.

12. UNDRR will provide the Santiago network secretariat with technical backstopping and expertise in the domain of averting, minimizing and addressing loss and damage consistently with the guidelines for preventing potential and addressing actual and perceived conflicts of interest in relation to the Santiago network (see para. 15 below).

13. UNDRR and UNOPS shall provide in-kind and other support for the Santiago network secretariat to carry out its roles and responsibilities, as set out in the terms of reference of the Santiago network.

14. UNDRR and UNOPS shall provide periodic updates on matters regarding the Santiago network secretariat, and the Santiago network secretariat shall make this information available in the annual report prepared in accordance with paragraph 19 of annex I to decision 12/CMA.4, endorsed by decision 11/CP.27.

15. UNDRR and UNOPS shall implement the guidelines preventing potential and addressing actual and perceived conflicts of interest in relation to the Santiago network, including any conflicts of interest that may arise when organizations, bodies, networks and experts are engaged in providing technical support to the Santiago network secretariat while responding to technical assistance requests, or when the host of the Santiago network secretariat is responding as an organization, body, network or expert to technical assistance requests, which shall be approved by the Advisory Board at its 1st meeting.

<sup>7</sup> In accordance with decision 12/CMA.4, annex I, para. 7(g).

<sup>8</sup> Available at <https://digitallibrary.un.org/record/3930354>.

16. UNDRR and UNOPS shall provide support to the work of the Advisory Board and ensure that the necessary arrangements are in place for the meetings of the Advisory Board, including privileges and immunities for members of the Board in line with existing practice.

17. The respective heads of UNDRR and UNOPS shall be responsible for the execution of the functions of UNDRR and UNOPS under this MOU in accordance with their respective legal and regulatory frameworks, including their regulations, rules, policies and procedures. UNDRR and UNOPS shall be legally responsible for any allegations, claims and/or damages arising from the activities performed pursuant to this MOU in the event of gross negligence or wilful misconduct on the respective parts of UNDRR and UNOPS and their personnel.

## **V. Role and functions of the Santiago network secretariat**

18. The Santiago network secretariat shall operate within its terms of reference<sup>9</sup> and shall be accountable to and operate under the guidance of the Advisory Board and in accordance with relevant decisions of the governing body or bodies.

19. The Santiago network secretariat shall facilitate the implementation of the functions of the network and shall manage its day-to-day operations in accordance with decision 12/CMA.4, paragraph 6, endorsed by decision 11/CP.27, and other relevant decisions of the governing body or bodies.

20. The Santiago network secretariat shall elaborate modalities and procedures for the network under the guidance of and by the approval of the Advisory Board.<sup>10</sup>

21. The Santiago network secretariat shall develop and execute a work programme, to be approved by the Advisory Board, building on synergies with the five-year rolling workplan of the Executive Committee.<sup>11</sup>

22. The Santiago network secretariat shall manage and direct the disbursement of funds provided for the network consistently with respective UNOPS and UNDRR fiduciary principles and standards that promote a high level of integrity.

23. The Santiago network secretariat shall make use of regional and subregional United Nations offices in all United Nations geographical regions, as appropriate, to serve as designated units to provide relevant services and support for catalysing effective and timely technical assistance in developing countries particularly vulnerable to the adverse effects of climate change.

24. The Santiago network secretariat shall prepare, under the guidance of the Advisory Board, an annual report on the activities of the Santiago network secretariat and the Santiago network and on the performance of their respective functions for consideration and approval by the Advisory Board.<sup>12</sup> The annual report shall include the elements referred to in paragraph 18 of annex I to decision 12/CMA.4, endorsed by decision 11/CP.27.

25. The Santiago network secretariat shall report annually to the Advisory Board information on the in-kind and other support provided by UNDRR and UNOPS that has contributed to its ability to carry out its roles and responsibilities, as set out in the terms of reference.

26. The Santiago network secretariat shall administer, through UNOPS and, where required, UNDRR, in accordance with their respective regulations, rules and procedures, the funds that will be provided to the Santiago network to support technical assistance for the implementation of relevant approaches to averting, minimizing and addressing loss and damage associated with the adverse effects of climate change in developing countries that are particularly vulnerable to those effects in support of the functions of the Santiago network, including the engagement of appropriate organizations, bodies, networks and

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<sup>9</sup> Decision 12/CMA.4, annex I, chap. IV.A.

<sup>10</sup> Decision 12/CMA.4, para. 17.

<sup>11</sup> Decision 12/CMA.4, annex I, chap. IV.B.

<sup>12</sup> Decision 12/CMA.4, annex I, chap. VIII.

experts. The funds will be managed in accordance with the respective regulations and rules of UNOPS and UNDRR, as applicable.

27. The Santiago network secretariat shall carry out financial management, auditing and reporting functions and implement a robust accountability system, sound financial systems of international standard, and a fiduciary record that ensures the correct, impartial administering and disbursement of funds. The annual financial audit, in accordance with the United Nations single audit principle, shall be carried out in accordance with UNOPS regulations, rules and policies regarding audit, and will be made available to the Advisory Board and the funding sources within six months of the closure of the financial year.

28. The Santiago network secretariat shall ensure the coordination and collaboration of the Santiago network with relevant UNFCCC constituted bodies, in particular the Executive Committee, as well as exploring synergies with other initiatives and networks.

## **VI. Role and functions of the Director and staff of the Santiago network secretariat**

29. The Director of the Santiago network secretariat shall provide strategic leadership to the network and manage its secretariat.

30. The Director shall have a fixed term of office no longer than the term of the MOU, which may be renewed subject to endorsement by the Advisory Board.

31. The Director shall be accountable to the Executive Director of UNOPS for administrative issues relating to the administrative effectiveness and efficiency of the Santiago network secretariat in accordance with relevant UNOPS regulations, rules and procedures, and to the Advisory Board for the effective implementation of the functions of the Santiago network. UNDRR may provide technical advice to the Director as needed.

32. The Director shall serve as the secretary to the Advisory Board and be responsible for facilitating and providing support for its work.

33. The Director shall facilitate timely recruitment of the staff of the secretariat in line with the terms of reference.

## **VII. Financial arrangements of the Santiago network secretariat**

34. The costs associated with the Santiago network secretariat and the mobilization of the services of the network will be funded consistently with decision 1/CMA.3, paragraph 70, and decision 12/CMA.4, paragraph 6, subject to separate funding agreements to be entered into on behalf of the Santiago network secretariat by UNDRR and/or UNOPS as applicable, and the funding sources, and in-kind and other support from UNDRR and UNOPS as outlined in the Proposal.

35. UNDRR and UNOPS shall ensure that the Santiago network and its secretariat are able to receive the required financial and other support from a wide variety of sources through both UNDRR and UNOPS to implement the terms of reference.

36. For the implementation of the workplan of the Santiago network secretariat, a management fee will be applied to the overall budget in accordance with the relevant UNOPS regulations and rules on cost recovery for its services.

37. UNDRR will manage any dedicated funding received in accordance with the United Nations regulations and rules for the management of voluntary contributions and will recover any direct cost incurred while hosting the Santiago network secretariat, in accordance with its rules and regulations.

## **VIII. Review of the Santiago network secretariat**

38. The Santiago network secretariat shall commission one independent review of the performance of the network, including sustainability and sources of funding, adequacy of funding levels relative to technical assistance requests, timelines, effectiveness, engagement, gender-responsiveness and delivery of technical assistance to communities particularly vulnerable to the adverse effects of climate change, in a timely manner so that the findings of the review can feed into the subsequent review of the Warsaw International Mechanism<sup>13</sup> for determining the need for further independent reviews of the performance of the Santiago network.<sup>14</sup>

## **IX. Implementation of this memorandum of understanding**

39. The Advisory Board, UNDRR and UNOPS may agree on further arrangements for the implementation of this MOU in line with future decisions of the governing body or bodies and report thereon to the governing body or bodies. Future arrangements for the implementation of this MOU do not in any way amend the existing provisions of this MOU.

40. Nothing in or relating to this MOU will be deemed a waiver, express or implied, of any of the privileges and immunities of the United Nations, including its subsidiary organs.

## **X. Dispute settlement**

41. The governing body or bodies, through the Advisory Board, and as facilitated by the UNFCCC secretariat, and UNDRR and UNOPS shall make their best efforts to amicably resolve any disputes, controversies or claims arising out of or relating to this MOU, including through use of mutually agreed dispute resolution methods.

## **XI. Entire agreement**

42. Any annex to this MOU that is concluded in the future will be considered an integral part of this MOU. References to this MOU will be construed as including any annexes, as varied or amended in accordance with the terms of this MOU. This MOU represents the complete understanding between the Parties.

## **XII. Interpretation**

43. This MOU will be interpreted in accordance with relevant decisions of the governing body or bodies and the legal and regulatory framework of UNOPS and UNDRR, as applicable, including the regulations, rules, policies and procedures of the United Nations Secretariat.

44. Any Party's failure to request the implementation of a provision of this MOU will not constitute a waiver of that or any other provision of this MOU.

## **XIII. Term of this memorandum of understanding**

45. The initial term of this MOU shall be five years from its entry into force, with five-year renewal periods, if so decided by the governing body or bodies and UNDRR and UNOPS.

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<sup>13</sup> Decision 2/CMA.2, para. 46.

<sup>14</sup> Decision 12/CMA.4, annex I, para. 20.

#### **XIV. Notification and amendment**

46. Each Party will promptly notify the other in writing of any anticipated or actual material changes that will affect the execution of this MOU.

47. The Parties may amend this MOU by mutual written agreement.

#### **XV. Entry into force**

48. This MOU will enter into force upon the last date of signature by the duly authorized representatives of the Parties.

#### **XVI. Termination**

49. Subject to chapter XIII above, any Party may terminate this MOU by giving one year's prior written notice to the other Parties. The termination shall come into effect one year from the date of the receipt of such a communication.

50. Following the termination of this MOU, UNDRR and UNOPS shall take all necessary action to conclude their operations relating to the Santiago network secretariat in an expeditious manner. Any termination of this MOU will be without prejudice to any other rights and obligations of the Parties accrued prior to the date of the termination under this MOU or any legal instrument executed pursuant to this MOU.

*5<sup>th</sup> plenary meeting  
11 December 2023*

## Decision 7/CMA.5

### Report of the Executive Committee of the Warsaw International Mechanism for Loss and Damage associated with Climate Change Impacts

*The Conference of the Parties serving as the meeting of the Parties to the Paris Agreement,*<sup>1</sup>

*Recalling* the Paris Agreement and relevant decisions of the Conference of the Parties and the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement,

1. *Welcomes* the 2023 report of the Executive Committee of the Warsaw International Mechanism for Loss and Damage associated with Climate Change Impacts<sup>2</sup> and endorses the recommendations in the report;

2. *Notes with appreciation* the work of the Executive Committee and its thematic expert groups (three expert groups, a technical expert group and a task force) to date, including their progress in advancing the development of technical guides<sup>3</sup> informed by the best available science, and the efforts of the Executive Committee to organize activities to commemorate the tenth anniversary of the establishment of the Warsaw International Mechanism;

3. *Expresses appreciation* to the organizations, experts and relevant stakeholders that contributed to the work reported in the document referred to in paragraph 1 above, including in relation to:

(a) The achievements of the thematic expert groups of the Executive Committee;

(b) The submission of information pursuant to paragraph 44 of decision 2/CMA.2, which is noted in decision 2/CP.25, relevant to the Santiago network for averting, minimizing and addressing loss and damage associated with the adverse effects of climate change;

(c) Activities related to the tenth anniversary of the establishment of the Warsaw International Mechanism, such as the submission of photographs for the photography exhibition;<sup>4</sup>

4. *Also expresses appreciation* to the Government of the Philippines for hosting the 18<sup>th</sup> meeting of the Executive Committee and invites other Parties to offer to host future meetings of the Committee, as appropriate, with a view to broadening the range of stakeholders involved, and facilitating active engagement of Parties, in the work of the Committee across regions;

5. *Encourages* relevant organizations and experts to continue to contribute as referred to in paragraph 3(a–b) above;

6. *Also encourages* the Executive Committee to continue to strengthen dialogue, coordination, coherence and synergies with relevant bodies and organizations under and outside the Convention and the Paris Agreement;

7. *Requests* the Executive Committee, in implementing its functions,<sup>5</sup> to:

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<sup>1</sup> Nothing in this document prejudices Parties' views or prejudices outcomes on matters related to the governance of the Warsaw International Mechanism for Loss and Damage associated with Climate Change Impacts.

<sup>2</sup> FCCC/SB/2023/4 and Add.1–2.

<sup>3</sup> In accordance with para. 26 of decision 2/CMA.2, which is noted in decision 2/CP.25.

<sup>4</sup> Under activity 1 of the five-year rolling workplan of the Executive Committee, contained in annex I to document FCCC/SB/2022/2/Add.2. Information on the photography exhibition is available at <https://unfccc.int/wim-excom/L-and-D-in-focus>.

<sup>5</sup> As set out in decision 2/CP.19, para. 5.

(a) Consider ways to collaborate with the entities that form part of the funding arrangements, including a fund, established in paragraphs 2–3 of decisions 2/CP.27 and 2/CMA.4,<sup>6</sup> and report on the outcomes of that consideration in its annual reports;

(b) Engage actively in the work under the Santiago network and collaborate with the Advisory Board of the Santiago network through the representation of the Executive Committee on the Board as provided for in decision 12/CMA.4 and endorsed in decision 11/CP.27;

(c) Promote the use of the technical guides and knowledge products developed by the Executive Committee and its thematic expert groups, at the regional and national level, including for undertaking activities under the Santiago network and during dedicated virtual meetings, as appropriate;

(d) Consider translating, as appropriate, relevant outputs of the work of the Executive Committee and its thematic expert groups into all official United Nations languages so as to maximize their added value and promote their dissemination;

(e) Continue to develop, as appropriate and in collaboration with its thematic expert groups, technical guides on relevant topics under all the strategic workstreams of its five-year rolling workplan;<sup>7</sup>

8. *Notes* that considerations related to the governance of the Warsaw International Mechanism will continue at its sixth session (November 2024);<sup>8</sup>

9. *Takes note* of the estimated budgetary implications of the activities to be undertaken by the secretariat referred to in paragraphs 1 and 7 above;

10. *Requests* that the actions of the secretariat called for in this decision be undertaken subject to the availability of financial resources.

*5<sup>th</sup> plenary meeting  
11 December 2023*

<sup>6</sup> For reference to the engagement of the Executive Committee of the Warsaw International Mechanism in the annual high-level dialogue on coordination and complementarity under the funding arrangements for responding to loss and damage, see annex II to decisions 1/CP.28 and 2/CMA.5.

<sup>7</sup> Contained in annex I to document FCCC/SB/2022/2/Add.2.

<sup>8</sup> It is noted that discussions on the governance of the Warsaw International Mechanism did not produce an outcome; this is without prejudice to further consideration of this matter.

## Decision 8/CMA.5

### New collective quantified goal on climate finance

*The Conference of the Parties serving as the meeting of the Parties to the Paris Agreement,*

*Recalling decisions 1/CP.21, paragraph 53, 14/CMA.1, 9/CMA.3 and 5/CMA.4,*

1. *Re-emphasizes* that deliberations on setting the new collective quantified goal on climate finance will conclude in 2024 and *decides* to transition to a mode of work to enable the development of a draft negotiating text for consideration by the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement at its sixth session (November 2024), noting that this does not set a precedent for other processes;
2. *Notes with appreciation* the work of the co-chairs of the ad hoc work programme on the new collective quantified goal on climate finance in 2023, *takes note* of the annual report on the ad hoc work programme by the co-chairs,<sup>1</sup> including the summary and key findings of the technical expert dialogues in 2023 and the overview of possible options identified during the technical expert dialogues, and *encourages* Parties and all stakeholders to continue to work in a constructive and inclusive manner in 2024;
3. *Acknowledges* the significant progress made under the ad hoc work programme in 2023 and *expresses gratitude* to the co-chairs for their leadership and efforts to strengthen the ad hoc work programme in 2023;
4. *Notes with appreciation* the deliberations at the 2023 high-level ministerial dialogue on the new collective quantified goal on climate finance and *takes note* of the summary of those deliberations prepared by the President of the fifth session of the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement, including the recommendations therein;<sup>2</sup>
5. *Expresses gratitude* for the support provided for the work under the ad hoc work programme in 2023;
6. *Decides* on the continuation of the current co-chairs of the ad hoc work programme in 2024 in order to ensure continuity of the process;
7. *Acknowledges* the need for the ad hoc work programme to build on the technical work conducted and the submissions made thereunder and allow for deliberations among Parties that are conducive to the development of a draft negotiating text for consideration by the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement at its sixth session;
8. *Requests* the co-chairs to include in their annual report, to be issued no later than four weeks prior to the sixth session of the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement, a substantive framework for a draft negotiating text capturing progress made for consideration by the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement at that session;
9. *Decides*, with respect to the technical expert dialogues referred to in paragraph 5 of decision 9/CMA.3, to conduct at least three technical expert dialogues in 2024 to allow for in-depth technical discussions on the elements of the new collective quantified goal on climate finance with a view to informing the meetings under the ad hoc work programme referred to in paragraph 10 below, with one dialogue to take place in advance of the sixtieth sessions of the subsidiary bodies (June 2024), one in conjunction with those sessions and one well before the sixth session of the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement, and two of the dialogues to be organized in separate regions with a view to facilitating inclusive and balanced geographical participation;

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<sup>1</sup> FCCC/PA/CMA/2023/11 and Add.1.

<sup>2</sup> FCCC/PA/CMA/2023/INF.1.



10. *Also decides* to conduct at least three meetings under the ad hoc work programme in 2024, back-to-back with the technical expert dialogues referred to in paragraph 9 above, to enable Parties to engage in developing the substantive framework for a draft negotiating text capturing progress made referred to in paragraph 8 above;
11. *Further decides* to conduct the meetings under the ad hoc work programme referred to in paragraph 10 above in an open-ended, inclusive and Party-driven manner open to observers, guided by the draft rules of procedure of the Conference of the Parties and its subsidiary bodies;<sup>3</sup>
12. *Requests* the co-chairs of the ad hoc work programme to:
- (a) Develop and make available, as soon as possible and no later than March 2024, a workplan for 2024, in accordance with paragraph 8 above and taking into account the submissions referred to in paragraph 13 below;
  - (b) Continue to organize the technical expert dialogues in an open, transparent, participatory and inclusive manner, in line with paragraphs 1 and 8 of decision 9/CMA.3, with a view to providing specific technical input and facilitating broad participation of non-State actors, multilateral development banks, the private sector, civil society, youth, Indigenous Peoples, local communities, academia and external technical experts, aiming for balanced geographical representation;
  - (c) Allow for, in preparing the substantive framework for a draft negotiating text capturing progress made referred to in paragraph 8 above, iterative development, taking into consideration the annual report of the co-chairs of the ad hoc work programme, submissions made in 2022–2023, the submissions referred to in paragraph 14 below, work undertaken in the context of the technical expert dialogues and the deliberations at the meetings under the ad hoc work programme, aiming to finalize the substantive framework for a draft negotiating text capturing progress made well in advance of the sixth session of the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement;
  - (d) Prepare a summary of the discussions at each technical expert dialogue and information on progress made at each meeting under the ad hoc work programme and the way forward following each meeting;
13. *Invites* Parties to submit views on issues to be addressed as part of the 2024 workplan referred to in paragraph 12(a) above via the submission portal<sup>4</sup> by 31 January 2024;
14. *Also invites* Parties, constituted bodies under the Convention and the Paris Agreement, the operating entities of the Financial Mechanism, climate finance institutions, observers and other stakeholders, including from the private sector, to submit views in advance of each technical expert dialogue and meeting under the ad hoc work programme via the submission portal;
15. *Requests* the secretariat to prepare a compilation and synthesis of the submissions referred to in paragraph 14 above as input to the technical expert dialogues and meetings under the ad hoc work programme;
16. *Also requests* the secretariat to facilitate the inclusive participation of all Parties, in particular developing country Parties, in the work under the ad hoc work programme;
17. *Emphasizes* the need for effective, inclusive and meaningful political engagement, including but not limited to the high-level ministerial dialogue referred to in paragraph 18 below, well in advance of the sixth session of the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement;
18. *Decides* to convene the 2024 high-level ministerial dialogue on the new collective quantified goal on climate finance well before the sixth session of the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement with a view to providing guidance for the deliberations on setting the new collective quantified goal on climate finance at that session;

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<sup>3</sup> FCCC/CP/1996/2.

<sup>4</sup> <https://www4.unfccc.int/sites/submissionsstaging/Pages/Home.aspx>.

19. *Also decides* to continue deliberations on setting the new collective quantified goal on climate finance and conclude those deliberations at its sixth session taking into consideration the annual report prepared under the authority of the co-chairs referred to in paragraph 8 above;
20. *Urges* the allocation of sufficient funding to enable the full and effective participation of developing country Parties in the meetings under the ad hoc programme and the technical expert dialogues in 2024;
21. *Requests* the secretariat to organize the meetings referred to in paragraphs 9–10 above in a cost-efficient manner;
22. *Takes note* of the estimated budgetary implications of the activities to be undertaken by the secretariat referred to in paragraphs 9–12, 16, 18 and 21 above;
23. *Requests* that the actions of the secretariat called for in this decision be undertaken subject to the availability of financial resources;
24. *Decides* to take into consideration and build on the outcome of the first global stocktake and the United Arab Emirates Framework for Global Climate Resilience in its deliberations on the new collective quantified goal;
25. *Welcomes* the call to scale up ambition, adaptation and mitigation finance in line with the needs of developing countries referred to in decision 1/CMA.5;
26. *Confirms* that the deliberations on the scale and elements of the new collective quantified goal will take into consideration the exigent need to support implementation of current nationally determined contributions and national adaptation plans and adaptation communications, including those submitted as adaptation components of nationally determined contributions, increase and accelerate ambition, and reflect the evolving needs of developing country Parties, and the need for enhanced provision and mobilization of climate finance from a wide variety of sources and instruments and channels, recognizing the interlinkages between the different elements of the new collective quantified goal, including in particular how the structure will impact the scale.

*6<sup>th</sup> plenary meeting  
13 December 2023*

## Decision 9/CMA.5

### Matters relating to the Standing Committee on Finance

*The Conference of the Parties serving as the meeting of the Parties to the Paris Agreement,*

*Recalling* Article 2, paragraph 1(c), and Article 9 of the Paris Agreement,

*Also recalling* decisions 1/CP.21, paragraphs 53 and 63, 11/CP.25, 5/CP.26, 14/CMA.1, 5/CMA.2, 11/CMA.3 and 14/CMA.4,

*Further recalling* decision 1/CMA.4, paragraph 42,

1. *Affirms* decision 5/CP.28;
2. *Welcomes* the establishment of the United Arab Emirates Framework for Global Climate Resilience referred to in decision 2/CMA.5 and *invites* the Standing Committee on Finance to consider including available data and information relevant for the implementation of the Framework in the second report on the determination of the needs of developing country Parties related to implementing the Convention and the Paris Agreement;
3. *Requests* the Standing Committee on Finance to include in its sixth Biennial Assessment and Overview of Climate Finance Flows information reported in biennial communications under Article 9, paragraph 5, of the Paris Agreement, as appropriate;
4. *Also requests* the Standing Committee on Finance to report to the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement at its sixth session (November 2024) on progress in implementing its workplan for 2024;<sup>1</sup>
5. *Further requests* the Standing Committee on Finance to consider the guidance provided to it in other relevant decisions of the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement;

#### I. Article 2, paragraph 1(c), of the Paris Agreement

6. *Notes with appreciation* the synthesis of views regarding ways to achieve Article 2, paragraph 1(c), of the Paris Agreement;<sup>2</sup>
7. *Also notes with appreciation* the report by the secretariat on the Sharm el-Sheikh dialogue on the scope of Article 2, paragraph 1(c), of the Paris Agreement and its complementarity with Article 9 of the Paris Agreement<sup>3</sup> and *takes note* of the recommendations therein proposed by the Presidency of the twenty-seventh session of the Conference of the Parties;
8. *Decides* to continue and strengthen the Sharm el-Sheikh dialogue between Parties, relevant organizations and stakeholders to exchange views on and enhance understanding of the scope of Article 2, paragraph 1(c), of the Paris Agreement and its complementarity with Article 9 of the Paris Agreement referred to in decision 1/CMA.4, paragraph 68, including with regard to the operationalization and implementation of Article 2, paragraph 1(c), in 2024–2025, recognizing the significant scale of investment needed to keep the global average temperature rise to well below 2 °C above pre-industrial levels and to pursue efforts to limit the temperature increase to 1.5 °C above pre-industrial levels, and to adapt to the adverse impacts of climate change and foster climate-resilient and low greenhouse gas emission development, including in the context of sustainable development and efforts to eradicate poverty;
9. *Also decides* that the dialogue referred to in paragraph 8 above is to be facilitated by two co-chairs, one from a developed country and one from a developing country, appointed,

<sup>1</sup> FCCC/CP/2023/2–FCCC/PA/CMA/2023/8, annex II.

<sup>2</sup> FCCC/CP/2023/2/Add.3–FCCC/PA/CMA/2023/8/Add.3.

<sup>3</sup> FCCC/PA/CMA/2023/7/Rev.1.

in consultation with the respective constituencies, by the President of the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement at its fifth session;

10. *Requests* the secretariat, under the guidance of the co-chairs of the dialogue, to organize at least two workshops per year with a view to engaging a broad range of relevant stakeholders and to prepare a report on each workshop;

11. *Invites* Parties, constituted bodies under the Convention and the Paris Agreement, the operating entities of the Financial Mechanism, climate finance institutions, observers and observer organizations, and other stakeholders, particularly from the private sector, to submit via the submission portal<sup>4</sup> by 31 March 2024 their views on the issues to be addressed during the workshops;

12. *Requests* the co-chairs of the dialogue, in convening the workshops, to take into consideration the submissions referred to in paragraph 11 above and the reports on the workshops referred to in paragraph 10 above, and to facilitate the participation of a broad range of relevant stakeholders;

13. *Also requests* the co-chairs of the dialogue to prepare a report on the deliberations under the Sharm el-Sheikh dialogue in 2024 and 2025 for consideration by the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement at its sixth and seventh (November 2025) sessions respectively;

14. *Further requests* the co-chairs of the dialogue to prepare, as part of their report in 2025, a synthesis of all work undertaken under the Sharm el-Sheikh dialogue for consideration by the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement at its seventh session with a view to the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement at its seventh session deciding on a way forward with regard to its deliberations on this matter;

## II. Adaptation finance

15. *Recognizes* the urgent need to scale up adaptation finance and *notes* the relevant information contained in the technical report on the doubling of adaptation finance;<sup>5</sup>

16. *Also notes* the executive summary of the report on the doubling of adaptation finance<sup>6</sup> and the recommendations therein and *encourages* Parties to consider implementing those recommendations, as appropriate;

17. *Invites* developed country Parties to continue to enhance transparency regarding their effort to double adaptation finance, including by, as appropriate, providing relevant information on a baseline for the doubling of adaptation finance;

## III. Article 4, paragraph 5, of the Paris Agreement

18. *Requests* the Standing Committee on Finance to consider Article 4, paragraph 5, of the Paris Agreement in implementing its relevant mandates and workplan;

19. *Takes note* of the estimated budgetary implications of the activities to be undertaken by the secretariat referred to in paragraphs 8–14 above;

20. *Requests* that the actions of the secretariat called for in this decision be undertaken subject to the availability of financial resources.

6<sup>th</sup> plenary meeting  
13 December 2023

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<sup>4</sup> <https://www4.unfccc.int/sites/submissionsstaging/Pages/Home.aspx>.

<sup>5</sup> Standing Committee on Finance. 2023. *Report on the doubling of adaptation finance*. Bonn:

UNFCCC. Available at <https://unfccc.int/SCF>.

<sup>6</sup> FCCC/CP/2023/2/Add.1–FCCC/PA/CMA/2023/8/Add.1.

## Decision 10/CMA.5

### Guidance to the Green Climate Fund

*The Conference of the Parties serving as the meeting of the Parties to the Paris Agreement*

1. *Recommends* that the Conference of the Parties at its twenty-eighth session transmit to the Green Climate Fund the guidance contained in paragraphs 2–6 below;<sup>1</sup>
2. *Welcomes* the report of the Green Climate Fund to the Conference of the Parties at its twenty-eighth session and its addendum,<sup>2</sup> including the information on action taken by the Board of the Green Climate Fund in response to guidance received from the Conference of the Parties;
3. *Also welcomes* the programmatic priorities and targets in the Strategic Plan for the Green Climate Fund 2024–2027<sup>3</sup> and *encourages* the Board to expedite their implementation;
4. *Requests* the Board to continue its consideration, with a view to approving policy proposals, to support results-based payments for activities referred to in decision 1/CP.16, paragraph 70, in accordance with Article 5, paragraph 2, of the Paris Agreement, consistently with the provisions in paragraphs 35 and 55 of the Governing Instrument for the Green Climate Fund;
5. *Also requests* the Board to take into consideration the United Arab Emirates Framework for Global Climate Resilience referred to in decision 2/CMA.5 and explore ways to assist Parties in fully and effectively implementing the global goal on adaptation, in line with the existing investment, results framework and funding windows and structures of the Green Climate Fund;
6. *Urges* the Board to continue efforts to enhance access to climate finance in a predictable manner to address the needs and priorities of developing country Parties, in particular for the least developed countries and small island developing States, in the context of their national climate strategies and plans.

*6<sup>th</sup> plenary meeting  
13 December 2023*

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<sup>1</sup> In accordance with decision 1/CP.21, para. 61.

<sup>2</sup> FCCC/CP/2023/8 and Add.1.

<sup>3</sup> Contained in annex III to Green Climate Fund document GCF/B.36/21.

## Decision 11/CMA.5

### Guidance to the Global Environment Facility

*The Conference of the Parties serving as the meeting of the Parties to the Paris Agreement,*

*Recalling* Article 13, in particular paragraph 14, of the Paris Agreement, which states that support shall be provided to developing countries for the implementation of that Article,

*Also recalling* Article 13, in particular paragraph 15, of the Paris Agreement, which states that support shall also be provided for the building of transparency-related capacity of developing country Parties on a continuous basis,

1. *Recommends* that the Conference of the Parties at its twenty-eighth session transmit to the Global Environment Facility the guidance contained in paragraphs 2–12 below;

2. *Welcomes* the support provided in accordance with Article 13 of the Paris Agreement through the Global Environment Facility to developing countries in relation to their implementation of the enhanced transparency framework during the reporting period (1 July 2022 to 30 June 2023), including support for:

(a) Preparing biennial transparency reports, including through the combined application process for preparing multiple biennial transparency reports and the expedited process for projects related to biennial transparency reports;

(b) Implementing 89 projects under the Capacity-building Initiative for Transparency in 87 countries aimed at building national capacity to implement the enhanced transparency framework;

3. *Underlines* the importance of providing adequate and predictable support to developing countries for preparing biennial transparency reports;

4. *Encourages* the Global Environment Facility to continue efforts to provide, in an expeditious manner, adequate, predictable and timely financial support to developing countries for preparing biennial transparency reports, and to enhance collaboration with its implementing agencies to promote timely delivery of support;

5. *Underscores* the importance of the Global Environment Facility exploring alternative programming modalities, procedures and processes for facilitating and expediting access to financial resources for enabling activities;

6. *Encourages* the Global Environment Facility to include in its annual report to the Conference of the Parties at its twenty-ninth session (November 2024) information on lessons learned with respect to enabling activities, in particular on the costs, access modalities and delivery of support for preparing the first biennial transparency reports;

7. *Requests* the Global Environment Facility in administering the Least Developed Countries Fund and the Special Climate Change Fund to take into account, in the context of its adaptation strategy, the United Arab Emirates Framework for Global Climate Resilience referred to in decision 2/CMA.5, and to explore ways to support Parties in achieving the global goal on adaptation;

8. *Encourages* the Global Environment Facility to consider including in its annual report to the Conference of the Parties information on support provided for research development and demonstration;

9. *Also encourages* the Global Environment Facility to further explore ways to provide support for assessing developing countries' needs and priorities in a country-driven manner, including technology and capacity-building needs, and for translating climate finance needs into action;

10. *Further encourages* the Global Environment Facility to further strengthen its approach to mobilizing private finance, including through blended finance, with a view to

de-risking scalable projects in developing countries and contributing to achieving the goals of the Paris Agreement;

11. *Encourages* the Global Environment Facility to participate in the workshops referred to in paragraph 14 of decision 18/CMA.5;

12. *Requests* the Global Environment Facility to consider ways to enhance the institutional capacity of developing country Parties to assist them in meeting their reporting requirements under the Paris Agreement in accordance with its Article 13, in the context of its enabling activities, and to report thereon in its annual report to the Conference of the Parties at its twenty-ninth session.

*6<sup>th</sup> plenary meeting  
13 December 2023*

## Decision 12/CMA.5

### Matters relating to the Adaptation Fund

The Conference of the Parties serving as the meeting of the Parties to the Paris Agreement,

*Recalling* decisions 1/CMP.3, 1/CMP.4, 2/CMP.10, 1/CMP.11, 2/CMP.12, 1/CMP.13, 1/CMP.14, 3/CMP.15, 3/CMP.16 and 4/CMP.17,

*Also recalling* decisions 13/CMA.1 and 1/CMA.3, paragraph 18,

1. *Welcomes* the annual report of the Adaptation Fund Board for 2023, including its addendum, and the information therein;<sup>1</sup>

2. *Notes* the following information, actions and decisions relating to the Adaptation Fund Board presented in the report referred to in paragraph 1 above:

(a) The approval of an implementation plan<sup>2</sup> for the Medium-Term Strategy of the Adaptation Fund for 2023–2027<sup>3</sup> that focuses on promoting locally led adaptation, scaling up projects and replicating their results, and strengthening linkages and synergies between the Strategy's pillars of action, innovation, and learning and sharing;

(b) The adoption of a resource mobilization target for 2023 of USD 300 million, to come from a greater number of contributors than in the previous year;

(c) The adoption of an enhanced proposal submission process to expedite the review of the increasing number of funding proposals and enable implementing entities to submit proposals under all funding windows of the Adaptation Fund on a rolling basis;

(d) Cumulative receipts of USD 1,517.20 million, as at 30 June 2023, into the Adaptation Fund Trust Fund, comprising USD 214.92 million from the monetization of certified emission reductions, USD 1,232.96 million from contributions and USD 69.31 million from investment income earned on the Trust Fund balance;

(e) Contributions of USD 282.15 million, of which USD 3.12 million from the monetization of certified emission reductions, USD 250.97 million from additional contributions and USD 28.06 million from investment income, received between 1 July 2022 and 30 June 2023;

(f) New pledges amounting to USD 187.74 million from 15 contributors received as at 10 December 2023 towards the Adaptation Fund resource mobilization target for 2023 of USD 300 million, to come from more than the 17 contributors in 2022;

(g) Outstanding pledged contributions from previous years of USD 148.27 million as at 7 December 2023, of which USD 67.79 million under signed agreements;

(h) An increase in cumulative project and programme approvals of approximately 14 per cent, to USD 1,060.75 million, between 1 July 2022 and 30 June 2023;

(i) The development of options for an Adaptation Fund policy on safeguarding against sexual exploitation and abuse and sexual harassment;<sup>4</sup>

(j) The continued implementation of the updated gender policy and action plan of the Adaptation Fund;

(k) The continued enhancement of complementarity and coherence with other climate funds and building of linkages with other constituted bodies under the Convention and the Paris Agreement;

<sup>1</sup> FCCC/KP/CMP/2023/2–FCCC/PA/CMA/2023/6 and Add.1.

<sup>2</sup> See Adaptation Fund Board document AFB/B.40/5/Rev.1.

<sup>3</sup> See Adaptation Fund Board document AFB/B.39/5/Rev.2.

<sup>4</sup> See Adaptation Fund Board document AFB/B.41/8/Rev.1.



(l) The consideration of options for reducing the carbon footprint of the Adaptation Fund;

(m) The development of knowledge products and learning activities;<sup>5</sup>

3. *Welcomes* the financial pledges made towards the Adaptation Fund resource mobilization target for 2023 of USD 300 million, to come from more than the 17 contributors in 2022, by the Governments of Austria, Denmark, France, Germany, Iceland, Ireland, Luxembourg, Norway, the Republic of Korea, Spain, Sweden and Switzerland, as well as the governments of the Brussels and Walloon Regions of Belgium and the provincial government of Quebec, equivalent to USD 187.74 million;

4. *Notes with concern* the outstanding pledged contributions to the Adaptation Fund and *urges* Parties to fulfil their pledges as soon as possible;

5. *Encourages* continued and increased voluntary contributions of financial resources to the Adaptation Fund in line with its resource mobilization strategy for 2022–2025;

6. *Underscores* the urgency of scaling up financial resources, including the provision of voluntary support, that are additional to the share of proceeds levied on certified emission reductions in order to support the resource mobilization efforts of the Adaptation Fund Board with a view to strengthening the Adaptation Fund;

7. *Emphasizes* the importance of continuing to take action to promote the adequacy and predictability of adaptation finance, including through multi-year contributions, taking into account the role of the Adaptation Fund in delivering dedicated support for adaptation;

8. *Stresses* the importance of financial contributions to the Adaptation Fund, including in the context of urging developed country Parties to at least double their collective provision of climate finance for adaptation to developing countries from 2019 levels by 2025, in the context of achieving a balance between mitigation and adaptation in the provision of scaled-up financial resources, recalling Article 9, paragraph 4, of the Paris Agreement, as per decision 1/CMA.3, paragraph 18;

9. *Acknowledges* the work of the Adaptation Fund in relation to concrete adaptation action in developing country Parties and in particular the least developed countries and small island developing States and *requests* the Adaptation Fund Board to continue supporting such action;

10. *Invites* the Adaptation Fund Board to continue to enhance access to the Fund and country ownership by:

(a) Considering strengthening the readiness activities for national implementing entities, considering their long-term capacity-building needs;

(b) Enhancing the accreditation and project and programme approval processes;

(c) Enhancing engagement between regional implementing entities and developing countries on regional, multi-country project design and implementation;

11. *Notes with appreciation* the information in the report referred to in paragraph 1 above on aggregated actual results of projects and programmes funded by the Adaptation Fund, in particular across the Fund's five core indicators, and the qualitative analysis of successes, challenges and lessons learned and *requests* the Adaptation Fund Board to continue providing such information on an annual basis;

12. *Encourages* the achievement of the goals set out in the Medium-Term Strategy of the Adaptation Fund for 2023–2027 with the expectation that its implementation will generate significant outcomes in terms of promoting locally led adaptation, scaling up projects and

<sup>5</sup> Including a training course on enhanced direct access; a study on the role of national financial institutions and trust funds in providing climate adaptation – lessons learned from the Adaptation Fund; a study on strengthening resilience through disaster risk reduction and early warning systems; an event during the Adaptation Futures 2023 Conference in Montreal, Canada; a project monitoring mission in Peru; and participation in the 2023 RedLAC Congress in Cusco, Peru.

replicating their results, and strengthening linkages and synergies between the Strategy's strategic pillars of action, innovation, and learning and sharing;

13. *Welcomes* the progress of implementation of the updated gender policy and action plan of the Adaptation Fund and the commencement of the pilot phase of application of the Adaptation Fund gender scorecard and *requests* the Adaptation Fund Board to increase the gender-responsiveness of the resources provided by the Adaptation Fund;

14. *Encourages* the Adaptation Fund Board to consider, in line with its mandate and decision 1/CMP.3, providing support for country-driven adaptation projects and programmes in developing country Parties that are particularly vulnerable to the adverse effects of climate change with a view to assisting them in enhancing implementation of their national adaptation plans and adaptation components of nationally determined contributions and other voluntary adaptation planning processes and *requests* the Board to include information in its annual report to the Conference of the Parties serving as the meeting of the Parties to the Kyoto Protocol at its nineteenth session (November 2024) and the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement at its sixth session (November 2024) on the rates of use of the increased cap on allocation per country;<sup>6</sup>

15. *Welcomes* the work of the Adaptation Fund Board on complementarity and coherence with other multilateral climate funds with respect to accreditation and other areas of operations<sup>7</sup> and *encourages* the Board to continue this work with a view to simplifying its access modalities, as appropriate;

16. *Welcomes* the collaboration between the Adaptation Fund and the Technology Executive Committee and the Climate Technology Centre and Network, including through the Adaptation Fund Climate Innovation Accelerator, and *encourages* continued collaboration in this regard;

17. *Recalls* paragraph 7 of decision 3/CMP.16, which confirms that Parties to the Paris Agreement are eligible for membership on the Adaptation Fund Board;

18. *Encourages* the Adaptation Fund Board to continue its consideration of its rules of procedure in the context of serving the Paris Agreement, including after the Subsidiary Body for Implementation has concluded consideration of matters related to membership of the Adaptation Fund Board;

19. *Also encourages* the Adaptation Fund Board to report on its work related to implementing its mandates from decisions 1/CMP.14 and 13/CMA.1 in its annual report to the Conference of the Parties serving as the meeting of the Parties to the Kyoto Protocol at its nineteenth session and the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement at its sixth session.

*6<sup>th</sup> plenary meeting  
13 December 2023*

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<sup>6</sup> See decision 13/CMA.3, para. 5.

<sup>7</sup> Including the declaration by the Adaptation Fund, the Climate Investment Funds, the Global Environment Facility and the Green Climate Fund on enhancing access to climate finance and increasing the effectiveness of multilateral climate funds (see <https://www.adaptation-fund.org/enhancing-access-and-increasing-impact-the-role-of-the-multilateral-climate-funds/>).

## Decision 13/CMA.5

### **Compilation and synthesis of, and summary report on the in-session workshop on, biennial communications of information related to Article 9, paragraph 5, of the Paris Agreement**

*The Conference of the Parties serving as the meeting of the Parties to the Paris Agreement,*

*Recalling* Article 9, paragraphs 1–5, of the Paris Agreement,

*Also recalling* Articles 4, 7, 10, 11, 13 and 14 of the Paris Agreement,

*Further recalling* decisions 3/CP.19, 1/CP.21, 13/CP.22, 12/CP.23, 12/CMA.1, paragraphs 9–11, and 14/CMA.3,

1. *Recognizes* the importance of predictability and clarity of information on financial support for the implementation of the Paris Agreement in accordance with decision 12/CMA.1;
2. *Reiterates* that developed country Parties shall biennially communicate indicative quantitative and qualitative information related to Article 9, paragraphs 1 and 3, of the Paris Agreement, as applicable, including, as available, projected levels of public financial resources to be provided to developing country Parties, and that other Parties providing resources are encouraged to communicate biennially such information on a voluntary basis;
3. *Welcomes* the second biennial communications of developed country Parties received to date in accordance with paragraph 4 of decision 12/CMA.1;
4. *Recognizes* that the second biennial communications took into account the areas for improvement identified in paragraph 13 of decision 14/CMA.3 and that many of the communications include information on increased projected levels of climate finance;
5. *Requests* developed country Parties to submit their biennial communications by 31 December 2024 and *encourages* other Parties providing resources to submit biennial communications on a voluntary basis;
6. *Notes* the compilation and synthesis<sup>1</sup> prepared by the secretariat of the information contained in the second biennial communications submitted in accordance with Article 9, paragraph 5, of the Paris Agreement;
7. *Also notes* the summary report<sup>2</sup> on the second biennial in-session workshop on information to be provided by Parties in accordance with Article 9, paragraph 5, of the Paris Agreement, held on 6 June 2023, and *welcomes* the key findings and messages contained therein;
8. *Underscores* the importance of the information contained in the biennial communications referred to in paragraph 3 above and identified in the compilation and synthesis referred to in paragraph 6 above, including in relation to:
  - (a) Making finance flows consistent with a pathway towards low greenhouse gas emissions and climate-resilient development in accordance with Article 2, paragraph 1(c), of the Paris Agreement and its complementarity with Article 9 of the Paris Agreement;
  - (b) Developing actions and plans for mobilizing private climate finance;
  - (c) Effectively addressing the needs and priorities of developing countries, including striking a balance between support for mitigation and adaptation;

<sup>1</sup> FCCC/PA/CMA/2023/2/Rev.1.

<sup>2</sup> FCCC/PA/CMA/2023/3.

(d) Integrating climate change considerations, including climate resilience, into international development assistance;

(e) Improving enabling environments to strengthen the absorptive capacity of developing countries;

(f) Reflecting on lessons learned for informing future efforts in providing, mobilizing and delivering climate finance;

9. *Notes* that the workshop referred to in paragraph 7 above provided Parties with an important platform to exchange views on the biennial communications, including on opportunities for improvement and challenges encountered;

10. *Requests* the secretariat to prepare a compilation and synthesis of the biennial communications submitted in 2024 in accordance with paragraph 7 of decision 12/CMA.1;

11. *Recalls* that the next biennial in-session workshop on information to be provided by Parties in accordance with Article 9, paragraph 5, of the Paris Agreement will be held in 2025;

12. *Requests* the secretariat to organize the biennial in-session workshop referred to in paragraph 11 above and to prepare a summary report on the workshop for consideration by the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement at its seventh session (November 2025);

13. *Notes* that the elements for discussion at the workshop referred to in paragraph 12 above are to be based on the information in the compilation and synthesis report referred to in paragraph 10 above and the summary report referred to in paragraph 7 above, including information provided by Parties in accordance with Article 9, paragraph 5, of the Paris Agreement conducive to measuring progress in line with Article 9, paragraph 6, of the Paris Agreement, as relevant;

14. *Also notes* the note by the President of the third session of the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement on the first biennial high-level ministerial dialogue on climate finance, in particular the key messages contained therein;<sup>3</sup>

15. *Welcomes* the deliberations at the second high-level ministerial dialogue on climate finance in accordance with paragraph 10 of decision 12/CMA.1 and *looks forward* to the summary thereof to be prepared by the President of the fifth session of the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement for its seventh session;

16. *Invites* Parties, in accordance with Article 9, paragraph 5, of the Paris Agreement, to take into account the following areas in preparing their biennial communications to be submitted in 2024, as applicable:

(a) Information on the status of projected levels of climate finance stated in previous biennial communications;

(b) Information on the challenges and limitations of providing ex ante information, particularly in relation to budgetary and legislative requirements for the allocation and approval of public climate finance disbursements;

(c) Information demonstrating how ex ante information responds to the implementation needs of developing country Parties, as referenced in their nationally determined contributions, adaptation communications and other national plans;

(d) Information on efforts towards achieving a balance in the provision of climate finance for mitigation and adaptation;

(e) Information demonstrating how each of their biennial communications has improved compared with the previous one, including how areas for improvement set out in relevant decisions of the Conference of the Parties and the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement have been addressed;

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<sup>3</sup> FCCC/PA/CMA/2023/13.

(f) More detailed information on strategies for scaling up the provision of climate finance, including through public interventions;

17. *Decides* to consider updating the types of information contained in the annex to decision 12/CMA.1 at its seventh session on the basis of the experience of and lessons learned by Parties in the preparation of their biennial communications of indicative quantitative and qualitative information;

18. *Takes note* of the estimated budgetary implications of the activities to be undertaken by the secretariat referred to in paragraphs 10 and 12 above;

19. *Requests* that the actions of the secretariat called for in this decision be undertaken subject to the availability of financial resources.

*6<sup>th</sup> plenary meeting  
13 December 2023*

## Decision 14/CMA.5

### Enhancing climate technology development and transfer to support implementation of the Paris Agreement

*The Conference of the Parties serving as the meeting of the Parties to the Paris Agreement,*

*Recalling Article 10 of the Paris Agreement,*

*Also recalling decision 1/CP.21, paragraphs 66 and 68, and decisions 15/CMA.1, 8/CMA.2, 15/CMA.3 and 19/CMA.4,*

1. *Welcomes* the joint annual report of the Technology Executive Committee and the Climate Technology Centre and Network for 2023<sup>1</sup> and the progress of the implementation of the joint work programme of the Technology Mechanism for 2023–2027<sup>2</sup> and the technology framework;
2. *Also welcomes* the enhanced coordination and collaboration between the Technology Executive Committee and the Climate Technology Centre and Network, including through their adoption of new and improved modalities of work for advancing implementation of the joint work programme of the Technology Mechanism for 2023–2027 across their joint activities, including releasing the 2023 edition of their joint publication on technology and nationally determined contributions,<sup>3</sup> and common areas of work;<sup>4</sup>
3. *Invites* the Technology Executive Committee and the Climate Technology Centre and Network to continue efforts to enhance the exchange of systematic feedback on their work, including by the Technology Executive Committee taking into consideration lessons learned in relation to the provision of technical assistance by the Climate Technology Centre and Network, and the Climate Technology Centre and Network taking into consideration the policy recommendations of the Technology Executive Committee in providing technical assistance to support implementation of the Paris Agreement;
4. *Welcomes* the engagement of the Technology Executive Committee and the Climate Technology Centre and Network with national designated entities to provide technical and logistical support to them,<sup>5</sup> including through regional forums for national designated entities, and *invites* the Technology Executive Committee and the Climate Technology Centre and Network to report on the progress of the support provided;
5. *Also invites* Parties to explore ways of enhancing the provision of technical and logistical support to their national designated entities and improving national-level coordination, including of national designated entities with operational focal points of the Global Environment Facility, national designated authorities of the Green Climate Fund, and designated authorities and national implementing entities of the Adaptation Fund;
6. *Notes* the Technology Mechanism initiative on artificial intelligence for climate action,<sup>6</sup> the aim of which is to explore the role of artificial intelligence as a technological tool for advancing and scaling up transformative climate solutions for mitigation and adaptation action in developing countries, with a focus on the least developed countries and small island developing States, while also addressing the challenges and risks posed by artificial intelligence, such as energy consumption, data security and the digital divide;

<sup>1</sup> FCCC/SB/2023/3.

<sup>2</sup> Available at <https://unfccc.int/ttclear/tec/workplan>.

<sup>3</sup> UNFCCC. 2023. *Technology and Nationally Determined Contributions: Stimulating the Uptake of Technologies in Support of Nationally Determined Contribution Implementation*. Bonn: UNFCCC. Available at <https://unfccc.int/ttclear/tec/techandndc.html>.

<sup>4</sup> Namely national systems of innovation, water–energy–food systems, energy systems, buildings and resilient infrastructure, business and industry, and technology needs assessments.

<sup>5</sup> As per decision 20/CMA.4, para. 7.

<sup>6</sup> See [https://unfccc.int/ttclear/acl\\_users/MultiPAS/artificial\\_intelligence](https://unfccc.int/ttclear/acl_users/MultiPAS/artificial_intelligence).

7. *Requests* the Technology Executive Committee and the Climate Technology Centre and Network to implement the initiative referred to in paragraph 6 above in a manner that gives special attention to the capacity needs for its use and consider how it can support the implementation of technology needs assessment outcomes and the joint work programme of the Technology Mechanism for 2023–2027;
8. *Also requests* the Technology Executive Committee and the Climate Technology Centre and Network to enhance awareness of artificial intelligence and its potential role in, as well as its impacts on, the implementation of the outcomes of technology needs assessments and the joint work programme of the Technology Mechanism for 2023–2027;
9. *Notes* the insufficient transfer and deployment of technology in developing countries, *encourages* the Technology Executive Committee and the Climate Technology Centre and Network to continue collaborating with the operating entities of the Financial Mechanism and relevant financial institutions with a view to enhancing the capacity of developing countries to prepare project proposals, facilitating their access to available funding for technology development and transfer and for implementing the results of their technology needs assessments and the technical assistance of the Climate Technology Centre and Network, and strengthening the transfer and deployment of technology, and *calls for* regional balance in this work;
10. *Commends* the Technology Executive Committee and the Climate Technology Centre and Network on their continued efforts to mainstream gender considerations in the implementation of the joint work programme of the Technology Mechanism for 2023–2027, including the launch of the global roster of gender and climate change technology experts<sup>7</sup> and the endorsement of the Climate Technology Centre and Network gender policy and action plan, and *invites* them to continue mainstreaming gender considerations in their work;
11. *Notes with appreciation* the information prepared by the Technology Executive Committee and the Climate Technology Centre and Network on their action taken in response to the mandates from the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement at its fourth session and the subsidiary bodies at their fifty-seventh sessions<sup>8</sup> and *invites* the Technology Executive Committee and the Climate Technology Centre and Network to provide such information in their joint annual reports;
12. *Expresses appreciation* for the voluntary financial and other contributions received for the work under the Technology Mechanism and *encourages* the provision of enhanced support for that work through financial and other resources;
13. *Notes with concern* that gender balance in the composition of the Technology Executive Committee and the Advisory Board of the Climate Technology Centre and Network has not yet been achieved;
14. *Welcomes* the finalization of the Climate Technology Centre and Network resource mobilization and partnership strategy for 2023–2027,<sup>9</sup> which has the aim of diversifying the resources of the Climate Technology Centre and Network and ensuring its funding is adequate, predictable and flexible;
15. *Encourages* the Climate Technology Centre and Network, its host the United Nations Environment Programme and the UNFCCC secretariat to collaborate on resource mobilization to ensure effective implementation of the joint work programme of the Technology Mechanism for 2023–2027 and *requests* the Technology Executive Committee and the Climate Technology Centre and Network to include information on the progress of their efforts in their next joint annual report;
16. *Acknowledges* the role of the Climate Technology Centre and Network Partnership and Liaison Office in enhancing interaction among national designated entities and with the

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<sup>7</sup> See <https://www.ctc-n.org/network/gender-climate-expert-roster>.

<sup>8</sup> See the document entitled “Responses from the TEC and the CTCN to guidance from Parties in 2023”, available at <https://unfccc.int/ttclear/tec/documents.html> (under annual reports and related documents).

<sup>9</sup> See Climate Technology Centre and Network Advisory Board document AB/2023/22/22.1, available at <https://www.ctc-n.org/calendar/events/22nd-ctcn-advisory-board-meeting> (under documents).

Green Climate Fund, and in providing technical support to developing countries across the core service areas of the Climate Technology Centre and Network and *requests* the Climate Technology Centre and Network to include information on the major outcomes of and lessons learned by its Partnership and Liaison Office in its annual reports;

17. *Notes with concern* that securing funding for implementing the mandates of the Technology Mechanism and its joint work programme for 2023–2027 remains a challenge, especially for the Climate Technology Centre and Network, and *encourages* the provision of enhanced support.

*5<sup>th</sup> plenary meeting  
11 December 2023*



## Decision 15/CMA.5

### Annual technical progress report of the Paris Committee on Capacity-building for 2023

*The Conference of the Parties serving as the meeting of the Parties to the Paris Agreement,*

*Recalling decisions 3/CMA.2, 18/CMA.3 and 21/CMA.4,*

1. *Welcomes* the annual technical progress report of the Paris Committee on Capacity-building for 2023<sup>1</sup> and *takes note* of the recommendations therein;<sup>2</sup>
2. *Invites* Parties, as appropriate, the operating entities of the Financial Mechanism, the constituted bodies under the Paris Agreement, United Nations organizations, observers and other stakeholders to consider the recommendations referred to in paragraph 1 above and to take any necessary action, as appropriate and in accordance with their mandates;
3. *Acknowledges* the progress of the Paris Committee on Capacity-building in implementing its workplan for 2021–2024,<sup>3</sup> which is based on the priority areas and activities set out in the annex to decision 9/CP.25 and confirmed in paragraph 4 of decision 3/CMA.2;
4. *Welcomes* the work of the Paris Committee on Capacity-building in relation to enhancing coherence and coordination of capacity-building activities under the Paris Agreement, including its collaboration with constituted bodies and other stakeholders in this regard;
5. *Notes* that capacity gaps and needs still exist in developing countries pertaining to the implementation of the Paris Agreement and *recalls* Article 11, paragraph 3, of the Paris Agreement in this regard;
6. *Invites* Parties and relevant institutions, as appropriate, to provide support and resources to the Paris Committee on Capacity-building for implementing its workplan for 2021–2024 in the light of the aim of the Committee established in decision 1/CP.21.

*6<sup>th</sup> plenary meeting  
13 December 2023*

<sup>1</sup> FCCC/SBI/2023/14.

<sup>2</sup> FCCC/SBI/2023/14, chap. III.

<sup>3</sup> FCCC/SBI/2020/13, annex I.

## Decision 16/CMA.5

### Terms of reference for the second review of the Paris Committee on Capacity-building

*The Conference of the Parties serving as the meeting of the Parties to the Paris Agreement,*

Recalling decisions 1/CP.21, 9/CP.25, 3/CMA.2, 18/CMA.3 and 21/CMA.4,

1. *Decides* to conduct the second review of the progress and need for extension of the Paris Committee on Capacity-building at its sixth session (November 2024);
2. *Affirms*, in this context, decision 12/CP.28;
3. *Adopts* the terms of reference for the second review of the Paris Committee on Capacity-building,<sup>1</sup> contained in the annex;
4. *Invites* Parties, constituted bodies under the Convention and the Paris Agreement, the operating entities of the Financial Mechanism, representatives of relevant processes under the Paris Agreement, and non-Party stakeholders to submit via the submission portal<sup>2</sup> by 29 February 2024 views on the second review of the Paris Committee on Capacity-building based on the terms of reference contained in the annex for consideration by the Subsidiary Body for Implementation at its sixtieth session (June 2024);
5. *Requests* the secretariat to prepare a synthesis report on the submissions referred to in paragraph 4 above for consideration by the Subsidiary Body for Implementation at its sixtieth session;
6. *Also requests* the Subsidiary Body for Implementation, at its sixtieth session, to initiate the second review of the Paris Committee on Capacity-building, in accordance with the terms of reference, taking into account the submissions referred to in paragraph 4 above and the synthesis report referred to in paragraph 5 above;
7. *Further requests* the Subsidiary Body for Implementation to complete its work on the second review of the Paris Committee on Capacity-building at its sixty-first session (November 2024) with a view to recommending a draft decision on the matter for consideration and adoption by the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement at its sixth session.

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<sup>1</sup> Pursuant to decision 9/CP.25, paras. 12–13.

<sup>2</sup> <https://www4.unfccc.int/sites/submissionsstaging/Pages/Home.aspx>.

## Annex

### Terms of reference for the second review of the Paris Committee on Capacity-building

#### I. Mandate

1. At its twenty-fifth session, the Conference of the Parties (COP) decided to review, at COP 29 (November 2024), the progress and need for extension of the Paris Committee on Capacity-building (PCCB).<sup>1</sup>
2. COP 25 requested the Subsidiary Body for Implementation (SBI) to initiate, at SBI 58, the preparation of the terms of reference for the second review of the PCCB with a view to COP 28 agreeing on the final terms of reference.<sup>2</sup>
3. COP 28 invited the Conference of the Parties serving as the meeting of the Parties to the Paris Agreement (CMA) to participate in the second review of the PCCB at CMA 6 (November 2024). At CMA 5, the CMA decided to also conduct the second review of the PCCB, at CMA 6.
4. COP 28 and CMA 5 requested SBI 60 (June 2024) to initiate the second review of the PCCB.

#### II. Objective

5. The objective of the second review is to assess the progress of the PCCB towards achieving its overall aim set out in decision 1/CP.21, paragraph 71, and affirmed in decision 3/CMA.2, paragraph 3, and in addressing its priority areas and activities set out in decision 9/CP.25, paragraph 9 and annex, and affirmed in decision 3/CMA.2, paragraph 4, as well as the need for its extension.

#### III. Scope

6. The review will cover the progress and need for extension of the PCCB.

#### IV. Sources of information

7. The review will draw upon, inter alia, the following sources of information:
  - (a) The annual technical progress reports of the PCCB;
  - (b) Relevant decisions of the COP and the CMA related to the PCCB;
  - (c) The submissions referred to in this decision;
  - (d) The synthesis report referred to in this decision;
  - (e) The views expressed by Parties during the review, that is at SBI 60 and SBI 61 (November 2024).

<sup>1</sup> Decision 9/CP.25, para. 12.

<sup>2</sup> Decision 9/CP.25, para. 13.

## **V. Approach**

### **A. Progress**

8. First, the progress of the PCCB towards achieving its overall aim and in addressing its priority areas and activities will be assessed taking into consideration the progress of the PCCB in implementing its 2021–2024 workplan.<sup>3</sup>

### **B. Need for extension**

9. The assessment of the progress of the PCCB will be the basis for determining the need for its extension and, as applicable, any other provisions relevant to the form of the extension.

*6<sup>th</sup> plenary meeting  
13 December 2023*

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<sup>3</sup> Available at <https://unfccc.int/documents/267207>.